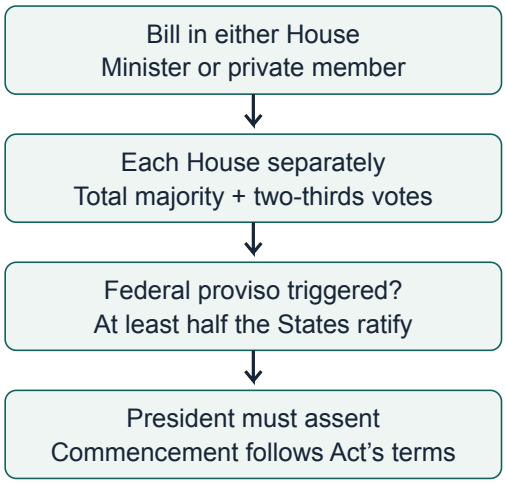
# Amendment of the Constitution

## 1. Adaptability with constitutional limits

- **Part XX, Article 368:** Parliament's constituent power to amend by **addition, variation or repeal** through prescribed procedure.
- India blends **flexibility and rigidity**; changes respond to social/political needs while protecting foundational commitments.
- **Kesavananda Bharati, 24 April 1973:** amendment power is wide but cannot **damage/destroy basic structure**. An amendment to Fundamental Rights is possible; destruction of constitutional fundamentals is not.
- Distinguish **constituent amendment under 368** from ordinary legislation expressly authorised to change particular constitutional arrangements.

## 2. Article 368: complete procedure

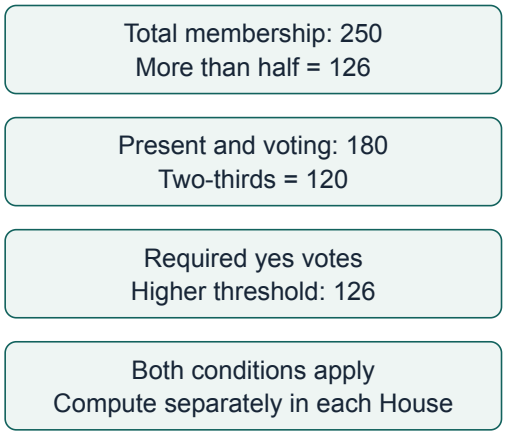
- Introduce amendment Bill in **either House of Parliament**; **minister or private member** may introduce it. **No prior presidential recommendation** required under 368; State legislature cannot introduce it.
- Each House separately passes **majority of total membership AND at least two-thirds present and voting**. Abstentions are not votes, but total membership is not reduced by absence/vacancies.
- **No joint sitting** to resolve disagreement. Lok Sabha cannot bypass Rajya Sabha; both Houses' approval essential.
- If specified federal provisions change, ratification by legislatures of **at least half the States**, through resolutions by ordinary majority, is required **before presidential presentation**.
- **No constitutional time limit for State ratification**. Remaining States need not all respond once required threshold is reached; “half” rounds up if total odd.
- President **must assent** after valid passage/required ratification; cannot withhold or return under this procedure. **24th Amendment 1971** made the obligation express.
- Assent makes it an Act; **commencement follows its terms**—some provisions may operate on later notified dates rather than immediately on assent.




Both parliamentary Houses and applicable ratification requirements must be satisfied.

## 3. Special-majority calculation

- Two simultaneous tests in **each House**: **more than half total membership**; **at least two-thirds present and voting**. Use whichever requires more affirmative votes.
- Example: total **250**, present/voting **180**. Total-membership threshold **126**; two-thirds **120**; **126 yes votes needed**.
- If only **100** vote, total-membership threshold remains **126**—amendment cannot pass in that division even if every voter agrees.
- Quorum, presence and affirmative-vote thresholds are different concepts. Lok Sabha procedure applies constitutional majority requirements at effective stages, not just as an informal final tally.




A constitutional majority combines total membership and actual votes.

## 4. Route A: ordinary/simple-majority law outside 368

- **2–4:** admit/establish/reorganise States; First/Fourth Schedule consequential changes. **169:** create/abolish State Legislative Council after the State Assembly's specified **special-majority resolution**; Parliament's resulting law is ordinary legislation.

- Other authorised matters: certain **Second-Schedule payments**, parliamentary quorum, members' salaries, procedure/privileges, English use in Parliament, number of SC judges, additional SC jurisdiction, official-language arrangements, citizenship, electoral/delimitation matters and UT arrangements.
- **Fifth/Sixth Schedule amendment powers:** expressly permit parliamentary changes outside 368, subject to their terms.
- Not every law on these subjects rewrites constitutional text; not every clause mentioning salaries, language, courts or UTs is freely amendable by ordinary majority. Follow the **specific enabling provision and safeguards**.
- Ordinary-law “simple majority” generally means majority **present and voting**, subject to quorum and procedure; no 368 special-majority test for these authorised changes.

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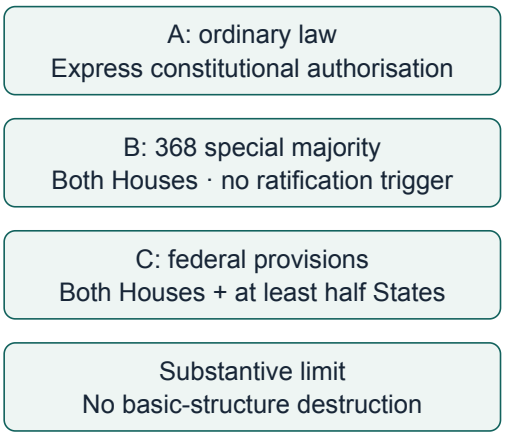
## 5. Route B: special majority of Parliament alone

- Provisions not requiring State ratification and not expressly changeable outside 368: e.g. **Fundamental Rights, DPSPs** and many other provisions.
- **Both Houses' 368 majority** required; basic-structure review applies.
- A proposal's effects can trigger ratification even if its title appears unrelated to federalism; substance matters.

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## 6. Route C: special majority plus State ratification

- **President election—54/55**; **Union/State executive power—73/162**; **279A GST Council**.
- **Union judiciary:** Part V, Chapter IV; **High Courts:** Part VI, Chapter V; **legislative Union–State relations:** Part XI, Chapter I.
- **Seventh-Schedule lists; States' representation in Parliament; Article 368 itself**.
- GST-Council inclusion in the ratification proviso came with **101st Amendment 2016**.
- Ratification requirement protects specified federal arrangements; **half the States**, not every State and not a referendum.
- **Rajendra N. Shah 2021:** 97th-Amendment cooperative provisions illustrate why required State ratification cannot be omitted merely by describing a change differently.




Choose the route by the provision and legal effect of the proposed change.

## 7. Criticisms and balanced responses

- **Parliament-centric:** no separate constitutional convention/Assembly; States cannot initiate a 368 amendment. **169 council resolution** is a distinct ordinary-law route, not an exception permitting States to introduce 368 Bills.
- **Limited federal consent:** most amendments need no State ratification; only **half** where required. USA ratification comparison: **three-fourths of States**, with different proposal machinery.
- **Procedural gaps:** no ratification deadline; no express constitutional answer on withdrawal of ratification; potential judicial disputes. Do not invent a settled withdrawal rule.
- **Deadlock:** no joint sitting; deliberate equal-House safeguard can also block change. Similarity to ordinary lawmaking is qualified by special majorities, ratification, assent rules and basic structure.
- Criticism of “sketchy” provisions must be balanced against operational parliamentary practice and judicial clarification.
- **K.C. Wheare:** balance of flexibility/rigidity, wise variety of procedures. **Nehru:** excessive rigidity obstructs a living nation's growth. **Ambedkar:** no claim of constitutional infallibility; amendment permitted under accessible procedures.
- Ambedkar's Canada comparison reflects the historical context, not a present claim that Canada's Constitution cannot be amended.

## 8. One-minute recall and answer structure

- **Ordinary law where expressly authorised; otherwise 368 special majority; specified federal changes add half-State ratification.**
- **Either House; private member allowed; no prior presidential recommendation; no joint sitting; mandatory assent.**
- **Two-thirds of votes alone is insufficient; also majority of total House strength.**
- **Mains:** need for change → constitutional route/majority → federal consent → basic-structure limit → evaluate adaptability versus stability.

Official Constitution, Article 368 and amendment proviso